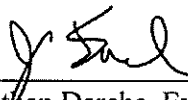


FIRST ENDORSEMENT

Executive Director, Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Amy Litwin, Department Advocate's Office, April 17, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23662 against Detective Anthony Mesa, Tax Registry No. 960640. The case was conferenced on March 16, 2023, before Assistant Deputy Commissioner of Trials Jeff Adler. CCRB recommended a penalty of the forfeiture of TEN (10) vacation days for Specification One (the presumptive penalty) and the forfeiture of Ten (10) vacation days for Specification Two (the presumptive penalty) running concurrently resulting in a Schedule "B" Command Discipline with the forfeiture of TEN (10) vacation days.

While Commissioner Adler agreed with CCRB's overall penalty recommendation of a Schedule "B" Command Discipline with the forfeiture of TEN (10) vacation days, he disagreed with the forfeiture of TEN (10) vacation days as it relates to Specification Two, instead recommending the forfeiture of five (5) vacation days (mitigated penalty). CCRB maintains that the First Specification and the Second Specification each be a presumptive penalty with forfeiture of Ten (10) vacation days running concurrently resulting in a Schedule "B" Command Discipline with the forfeiture of TEN (10) vacation days.



Jonathan Darche, Executive Director
New York City Civilian Complaint Review Board

APPROVED

OCT 18 2023

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2021-23662

BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, MESA	FIRST ANTHONY	M.I.	COMMAND HOUSING PSA 1
SHIELD NO. 7992	TAX REGISTRY NO. 960940	SOCIAL SECURITY NO.	DATE APPOINTED 01/06/2016	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Anthony Mesa, on or about June 4, 2020, at approximately 2240, while assigned to PSA 1 and on duty, in the vicinity of Intersection of Washington Avenue and Fulton Street, Kings County, wrongfully used force against an individual without police necessity, in that he pulled the individual toward the sidewalk by her hair.	DISMISSED	B - COMMAND DISCIPLINE 10.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated.
2 . Police Officer Anthony Mesa, on or about June 4, 2020, at approximately 2240, while assigned to PSA 1 and on duty, in the vicinity of Intersection of Washington Avenue and Fulton Street, Kings County, wrongfully used force, in that he pushed § 87(2)(b) without police necessity.	DISMISSED	

DC Stephen Casar
for: FIRST DEPUTY COMMISSIONER

07/14/23
DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)

Edward A. Caber
POLICE COMMISSIONER

10/18/23
DATE

FIFTH ENDORSEMENT

First Deputy Commissioner to Deputy Commissioner, Department Advocate, October 19, 2023. Contents noted. Please note the Police Commissioner's **DISAPPROVAL** of the Third Endorsement and **APPROVAL** of the First Endorsement regarding Disciplinary Case No. 2021-23662 against Detective Anthony Mesa, Tax No. 960940.

Please ensure that a copy of the fully adjudicated Command Discipline is expeditiously forwarded to the Police Commissioner's Office.

Forwarded for your **NECESSARY ATTENTION**.

DC Kinsella

μ

Tania I. Kinsella
First Deputy Commissioner

TIK/es

cc: Deputy Commissioner, Trials
Chief of Professional Standards